

MASTER SERVICES AGREEMENT

Agreement Number: MSA-2024-001

Date: January 15, 2024

BETWEEN:

Meridian Technologies Inc. ("Service Provider")
123 Innovation Drive, Suite 500
San Francisco, CA 94105

AND:

Acme Corporation ("Client")
456 Business Park Avenue
New York, NY 10001

1. SCOPE OF SERVICES

The Service Provider agrees to provide the following services to the Client:

- Software development and maintenance services
- Cloud infrastructure management
- Technical support and consulting
- Data analytics and reporting

2. TERM AND RENEWAL

This Agreement shall be effective from January 15, 2024, and shall continue for a period of twenty-four (24) months, unless terminated earlier in writing by either party.

3. COMPENSATION

3.1 The Client shall pay the Service Provider a monthly retainer of \$25,000 for the services outlined in Section 1.

3.2 Additional services requested beyond the scope defined in Section 1 shall be billed at the following rates:

- Senior Developer: \$175/hour
- Junior Developer: \$125/hour
- Project Manager: \$150/hour
- Technical Consultant: \$200/hour

3.3 All invoices shall be payable within thirty (30) days of receipt.

4. INTELLECTUAL PROPERTY

4.1 All work product created by the Service Provider in the performance of this Agreement shall be the exclusive property of the Client.

4.2 The Service Provider retains ownership of any pre-existing intellectual property, tools, and frameworks used in the delivery of the services.

5. CONFIDENTIALITY

Both parties agree to maintain the confidentiality of all proprietary information, trade secrets, and business strategies disclosed during the term of this Agreement.

6. LIMITATION OF LIABILITY

6.1 The Service Provider's total liability under this Agreement shall not exceed the total fees paid by the Client in the twelve (12) months preceding the event giving rise to the claim.

6.2 Neither party shall be liable for indirect, incidental, consequential, or punitive damages.

7. TERMINATION

7.1 Either party may terminate this Agreement with ninety (90) days written notice.

7.2 Either party may terminate immediately in the event of a material breach that remains uncured for thirty (30) days after written notice.

8. DISPUTE RESOLUTION

8.1 Any disputes arising under this Agreement shall first be submitted to mediation.

8.2 If mediation fails, disputes shall be resolved through binding arbitration in accordance with the rules of the American Arbitration Association.

8.3 The prevailing party shall be entitled to recover reasonable attorney's fees.

9. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of California.

10. SERVICE LEVEL AGREEMENT

10.1 System Uptime: The Service Provider guarantees 99.9% uptime for all managed services.

10.2 Response Times:

- Critical Issues: 1-hour response time
- High Priority: 4-hour response time
- Medium Priority: 8-hour response time
- Low Priority: 24-hour response time

10.3 For each percentage point below the guaranteed uptime, the Client shall receive a 5% credit on the monthly retainer.

Signed:

John Mitchell
CEO, Meridian Technologies Inc.

Sarah Chen
VP Operations, Acme Corporation